BY ORDER OF THE
SECRETARY OF THE AIR FORCE

AIR FORCE POLICY DIRECTIVE 51-4

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Law

OPERATIONS AND INTERNATIONAL LAW

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This publication implements Department of Defense (DoD) Directive (DoDD) 5530.3, *International Agreements;* DoDD 5525.1, *Status of Forces Policy and Information;* DoD Instruction (DoDI) 2000.11, *Procedures for Handling Requests for Asylum and Temporary Refuge;* DoDI 5100.64, *DoD Foreign Tax Relief Program;* DoDI 5525.03, *Criminal Jurisdiction of Service Courts of Friendly Foreign Forces and Sending States in the United States*; and DoDD 2311.01E, *DoD Law of War Program*. This directive is consistent with DoDD 3000.03E, *DoD Executive Agent for Non-Lethal Weapons (NLW), and NLW Policy* and DoDD 3000.09, *Autonomy in Weapon Systems*. This directive applies to all Air Force personnel (Regular Air Force, Air Force Reserve and Air National Guard military and all civilian appropriated and nonappropriated fund employee personnel and those with a contractual obligation to abide by the terms of Air Force issuances).

Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, Recommendation for Change of Publication; route AF Forms 847 from the field through appropriate functional's chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, Management of Records, and disposed of in accordance with Air Force Records Disposition Schedule (RDS) located in the Air Force Records Information Management System (AFRIMS).

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. It merges and supersedes two Policy Directives (AFPD 51-4 and AFPD 51-7). Major changes with respect to policy direction previously contained in AFPD 51-7 include identifying specific roles and responsibilities and delegating authority to negotiate and conclude international agreements regarding predominately Air Force matters. Major changes regarding policy direction previously contained in AFPD 51-4 include replacing the term "Law of Armed Conflict" with DoD's preferred term "law of war" throughout the document; updating other terminology to ensure consistency with DoD guidance; implementing "The Airman's Rules"; adding "weapon systems" to the items requiring legal review; and numerous revisions to the overall content to ensure requirements are accurately and clearly stated. Other administrative updates have also been made to the overall organization, and to the references and definitions.

1. Policy.

1.1. Air Force operations often cross international boundaries and therefore must respect international law while protecting and defending United States (US) and Air Force interests and personnel.

1.2. Negotiating, Concluding, Reporting, and Maintaining International Agreements. Air Force personnel, or those serving with or accompanying the Air Force, initiate, negotiate, and conclude international agreements in accordance with the *Case-Zablocki Act*, Title 1 United States Code (USC) Section 112b, DoDD 5530.3.

1.3. Foreign Tax Relief. The Air Force obtains, to the maximum extent practicable, effective relief from foreign taxes whenever the ultimate economic burden of those taxes will be paid with funds appropriated or allocated to the Air Force, or under the control of its non-appropriated fund activities.

1.4. Requests for Asylum or Temporary Refuge. Foreign nationals within US territorial jurisdiction or on the high seas who request asylum or temporary refuge are given a full opportunity to have their request considered on its merits. Persons seeking temporary refuge receive every reasonable care and protection available under the circumstances.

1.5. Foreign Criminal Jurisdiction. The Air Force seeks to obtain the release from foreign custody of, and maximize jurisdiction over, all US military personnel charged with criminal offenses under foreign law.

1.6. Assistance to Friendly Foreign Forces and the Forces of Sending States. The Air Force provides assistance to friendly foreign forces in the US who, based on a Presidential finding or declaration, are specifically granted the powers and privileges prescribed in Title 22 USC Sections 701-706.

1.7. Law of War. The Air Force and its personnel comply with the law of war at all times. The law of war, also referred to as the Law of Armed Conflict or International Humanitarian Law, is the part of international law that regulates the conduct of armed hostilities. It also includes international law regulating the resort to armed force, belligerent occupation, and the relationships between belligerent, neutral, and non-belligerent States. The US, including its individual citizens, is bound by all treaties and international agreements to which the US is a party, as well as by applicable customary international law. The law of war arises from

civilized nations' humanitarian desire to lessen the effects of conflicts. It protects combatants from unnecessary suffering, and safeguards the basic rights of non-combatants and civilians. The Air Force will ensure its personnel understand, observe, report, and enforce the law of war, and abide by US Government law of war obligations in all military operations. The Air Force also requires legal reviews of all weapons, weapon systems, and relevant cyber capabilities to ensure compliance with the law of war.

2. Roles and Responsibilities .

2.1. Air Force General Counsel (SAF/GC) shall:

2.1.1. Serve as the liaison office with the General Counsel of the DoD (DoD/GC) on matters under DoDD 5530.3 and as the primary advisor on questions about the negotiation and conclusion of international agreements, to include whether any document or set of documents constitutes an international agreement, and forward such questions to the DoD/GC when necessary.

2.1.2. Resolve whether a proposed international agreement has "policy significance" requiring approval by the Office of the Under Secretary of Defense (Policy) (OUSD(P)) before any negotiation thereof, and again before conclusion.

2.1.3. Review and provide concurrence with all proposals for the negotiation and conclusion of international agreements originating or received in the Secretariat of the Air Force or the Air Staff.

2.1.4. Resolve questions on whether a proposed subsidiary arrangement is within the scope of an umbrella or master international agreement.

2.1.5. With regard to subject matters of SAF/GC responsibility, provide review and concurrence before any draft proposed international agreement is tendered to a prospective party, initialed or concluded, and before any unilateral commitment is made to a foreign government.

2.1.6. Where appropriate, provide the legal memorandum to support a request to the OUSD(P) to negotiate and to conclude a proposed international agreement.

2.1.7. Monitor compliance with the requirements of DoDD 5530.3.

2.1.8. Coordinate with appropriate subject matter experts to resolve questions regarding a party's compliance with the terms of an international agreement that cannot be settled by informal discussions between the responsible offices, keeping DoD/GC informed.

2.1.9. Forward matters of major importance affecting the DoD Foreign Tax Relief Program to DoD/GC.

2.1.10. In coordination with The Judge Advocate General (AF/JA) as appropriate, accomplish a thorough and accurate legal review of each weapon, weapon system, or relevant cyber capability, developed within a Special Access Program.

2.2. AF/JA shall:

2.2.1. Interpret and issue Air Force implementing instructions to DoDD 5525.1, DoDI 2000.11, DoDI 5100.64, DoDI 5525.03, DoDD 2311.01E, DoDD 3000.03E, and DoDD 3000.09, in coordination with SAF/GC as appropriate.

2.2.2. Provide advice and guidance, and issue Air Force implementing instructions to DoDD 5530.3, in coordination with SAF/GC as appropriate.

2.2.3. Maintain an index of all international agreements involving predominately Air Force matters.

2.2.4. Provide an annual report to DoD/GC identifying international agreements concluded or terminated in the previous calendar year.

2.2.5. With regard to subject matters of AF/JA responsibility, provide review and concurrence before any draft proposed international agreement is tendered to a prospective party, initialed or concluded, and before any unilateral commitment is made to a foreign government.

2.2.6. Where appropriate, provide the legal memorandum to support a request to OUSD(P) to negotiate and to conclude a proposed international agreement.

2.2.7. Supervise and monitor the Air Force's program for foreign tax relief in its role as the cognizant office within the Air Force for foreign tax matters.

2.2.8. Assist a friendly foreign force or the force of a sending state in the exercise of criminal jurisdiction over its personnel under the provisions of Title 22 USC, sections 701-706 or applicable international agreement and DoDI 5525.03, as the designated agent for the Air Force.

2.2.8.1. Establish appropriate channels and procedures for receipt and forwarding of requests.

2.2.8.2. Assist the friendly foreign force or the force of a sending state in contacts with authorities of the United States, including political subdivisions thereof, in matters arising under the provisions of DoDI 5525.03.

2.2.8.3. Notify DoD/GC, the OUSD(P), the Assistant Secretary of Defense for Public Affairs, and the Chairman of the Joint Chiefs of Staff of the intent to exercise the criminal jurisdiction of service courts of a friendly foreign force or sending state in the US.

2.2.8.4. Report all cases arising under the provisions of DoDI 5525.03 and all detentions authorized pursuant to DoDI 5525.03 to SAF/GC and DoD/GC.

2.2.9. Serve as the Air Force office of primary responsibility to ensure effective implementation of DoD law of war programs within the Air Force. AF/JA will:

2.2.9.1. Provide comprehensive advice on requirements and content of the law of war.

2.2.9.2. Ensure qualified Air Force legal advisers are available to all levels of command to provide advice about law of war compliance during doctrine development and the planning and execution of exercises and operations.

2.2.9.3. Assist commanders in ensuring all law of war reportable incidents are properly reported and, when appropriate, processed through the military justice system pursuant to the requirements of the UCMJ, Military Extraterritorial Jurisdiction Act (MEJA), and other applicable US law.

2.2.9.4. Periodically review and evaluate Air Force activities to ensure effective programs are maintained to prevent law of war violations, including the review of such programs in connection with any reported violation.

2.2.9.5. Accomplish a thorough and accurate legal review of all other Air Force weapons, weapon systems and relevant cyber capabilities, not addressed by paragraph 2.1.10. of this directive.

2.2.10. Conduct legal reviews of all weapons, weapon systems, and relevant cyber capabilities, acquired or modified by the Air Force to ensure compliance with the law of war, domestic, and international law at the earliest stage possible in development (prior to procurement or acquisition). In the rare cases where circumstances do not permit such a review to be completed sooner, a legal review must be accomplished prior to any employment in military operations. The weapon and capability legal reviews shall be consistent with the requirements outlined in DoDD 5000.01, *The Defense Acquisition System*; DoDD 3000.3E, and DoDD 3000.09. NOTE: Weapons and Weapon Systems do not include the launch or delivery platforms, such as, but not limited to, ships, aircraft, or intercontinental ballistic missiles.

2.3. The Deputy Under Secretary of the Air Force (International Affairs) (SAF/IA) shall:

2.3.1. Serve as the lead Air Force representative to the Security Cooperation Enterprise for matters pertaining to International Armaments Cooperation activities and Defense Personnel Exchange Programs; excludes the Defense Intelligence Personnel Exchange Program. This includes serving as the Air Force lead for negotiating and concluding agreements under these programs.

2.3.2. Advise Air Force and DoD organizations on mechanisms for cooperation, international partner opportunities, and policy considerations.

2.3.3. Sign international agreements, or delegate signature authority for international agreements, after obtaining appropriate approvals, and record such signatures and delegations in accordance with DoD or other relevant guidance.

2.4. The Deputy Chief of Staff for Manpower, Personnel and Services (AF/A1) is the Secretary-designated monitor for all ancillary training and owns the Air Force Learning Committee process to vet new ancillary training requirements, establish priorities, and determine efficient delivery options for the Total Force. AF/JA is responsible for the content of law of war training and must route new requirements or changes to frequency, duration, or target groups for law of war training through AF/A1DL to initiate review and action. Law of war training should reinforce the principles set forth in The Airman's Rules.

2.5. The Deputy Chief of Staff for Operations (AF/A3) shall:

2.5.1. Ensure that Air Force plans, policies and procedures under its purview incorporate law of war considerations where appropriate.

2.5.2. In coordination with AF/JA, ensure legal advisers are integrated into exercises, planning activities and operations to enable them to provide advice concerning domestic and international law, including law of war compliance.

2.5.3. Ensure that all information required is available for AF/JA or SAF/GC to accomplish a legal review of each weapon, weapon system or relevant cyber capabilities.

2.6. The Air Force Inspector General (SAF/IG) shall:

2.6.1. Advise AF/JA on Air Force inspection policy and trends in accordance with AFPD 90-2, *Inspector General—The Inspection System,* and, as necessary, provide inspection feedback and tools to support the law of war mission and policy requirements.

2.6.2. Develop appropriate policies and procedures to ensure the Air Force Office of Special Investigations (AFOSI) meets its unique investigative responsibilities related to law of war reportable incidents.

2.7. The Assistant Secretary of the Air Force for Acquisition (SAF/AQ) shall:

2.7.1. Provide guidance to ensure Air Force acquisition specialists submit timely requests for reviews of weapons, weapon systems, and relevant cyber capabilities when applicable, and training to incorporate law of war requirements into applicable Air Force contracts pursuant to DoD policy.

2.7.2. Consult with AF/JAQ and AF/JAO to monitor contractor training requirements and disseminate guidance as necessary to incorporate it into Air Force contracts as applicable.

2.7.3. Ensure all requests for weapons, weapon systems, and relevant cyber capabilities reviews are promptly and timely directed to AF/JA and/or SAF/GC; and that all information required for AF/JA or SAF/GC to accomplish a legal review of each weapon, weapon system, or relevant cyber capability, is available.

2.8. The Commander, Air Education and Training Command, and the Superintendent, United States Air Force Academy will include law of war instruction in their respective military training and education programs where appropriate.

2.8.1. Conduct a training program on basic law of war rules and principles, and further training commensurate with duties. This mandatory law of war training is necessary to meet the minimum criteria for training required by the 1949 Geneva Conventions. Mandatory law of war training will be conducted as part of the Air Force Expeditionary Readiness Program training as prescribed and shall, at a minimum, reinforce the following primary rules (referred to as “The Airman’s Rules”):

2.8.1.1. Airmen fight only combatants or other appropriate hostile forces.

2.8.1.2. Airmen treat humanely all who surrender or are captured.

2.8.1.3. Airmen do not kill or torture personnel in their custody.

2.8.1.4. Airmen respect and protect the wounded—friend or foe.

2.8.1.5. Airmen treat civilians humanely.

2.8.1.6. Airmen do not attack protected persons or places.

2.8.1.7. Airmen destroy no more than the mission requires.

2.8.1.8. Airmen respect civilian property and possessions.

2.8.1.9. Airmen act with excellence and do their best to prevent law of war violations.

2.8.1.10. Airmen act with integrity and report all suspected law of war violations.

2.9. Organizations responsible for personnel with unique responsibilities under the law of war, including the Air Force Surgeon General (AF/SG), the Chief of Chaplains (AF/HC), and the Director of Security Forces (AF/A4S), in coordination with AF/JA, will develop appropriate policies and procedures to ensure they meet their respective responsibilities under the law of war.

2.10. Commanders of Major Commands (MAJCOM)/Direct Reporting Units/Field Operating Agencies and Deputy Chiefs of Staff of Headquarters Air Force Organizations.

2.10.1. Are delegated the authority to approve the negotiation and conclusion of international agreements on predominately Air Force matters that are within the authority and responsibility of such commanders and deputy chiefs of staff, as delegated to the Secretary of the Air Force under DoDD 5530.3, except for those matters having policy significance.

2.10.1.1. May delegate further the authority in paragraph 2.10.1 to subordinate commanders. Deputy Chiefs of Staff of Headquarters Air Force organizations may not delegate further.

2.10.1.2. Exercise delegated authority in full consultation with DoD components having interest in subject before the negotiation and conclusion of an agreement in accordance with DoDD 5530.3.

2.10.2. Ensure that a complete negotiation history file is compiled, retained and maintained in retrievable form for each international agreement for which the Air Force bears primary negotiating responsibility within the DoD; this requirement shall apply, even if the chief US negotiator or the signer of the agreement is an official of another DoD organization.

2.10.3. Forward two reproducible copies of each international agreement to the DoD/GC, with a copy to AF/JAO for all predominately Air Force matters, not later than twenty (20) days after the agreement enters into force. Unless one of the two copies is the original, each of the two copies sent to DoD/GC shall be certified to be a true copy of the original agreement. A background statement meeting the requirements of DoDD 5530.3 shall accompany the transmittal.

2.10.4. In foreign countries where a commander of an Air Force unit or organization is not the Designated Military Commander for tax matters, the appropriate Air Force overseas MAJCOM commander may designate an Air Force Liaison Officer for tax matters.

2.11. Commanders at all levels shall ensure that Air Force personnel in their commands are familiar with their law of war obligations in accordance with applicable Air Force guidance and combatant command reporting instructions. Commanders will ensure all command policies, procedures and activities are consistent with the law of war. Commanders will ensure a judge advocate reviews all command plans, policies, procedures, and operations to ensure they comply with the U.S. legal obligations under domestic and international law, including the law of war. Commanders will ensure personnel comply with the law of war during all armed conflicts, however such conflicts are characterized, and during all other military operations, the law of war's fundamental principles and rules. Commanders additionally will:

2.11.1. Implement effective programs and resources to prevent violations of the law of war and integrate qualified legal advisers at all levels of command to provide advice about law of war compliance during the planning and execution of exercises and operations.

2.11.2. Provide guidance for applicable Air Force contracts requiring contractors assigned to or accompany the force is consistent with DoDI 3020.41, Operational Contract Support.

2.11.3. Maintain awareness of allegations of war crimes committed by or against members of the Air Force (to include persons accompanying the force) pursuant to directives or instructions issued by a Combatant Commander, to include maintaining awareness of the status and outcome of relevant investigations.

2.11.4. In the absence of applicable Combatant Command or Joint Task Force directives, instructions, or investigations, appropriate commanders will determine if allegations are credible and will refer credible allegations of war crimes to Air Force investigative agencies (i.e., law enforcement) to investigate. As appropriate, the Air Force will promptly act upon investigative reports of alleged war crimes by personnel subject to the Uniform Code of Military Justice (UCMJ) and the Military Extraterritorial Jurisdiction Act of 2000 (MEJA).

2.11.5. Provide for the central collection of completed reports of reportable incidents, as defined by DoDD 2311.01, involving Air Force personnel and forward to other components in accordance with DoD policy guidance.

2.12. All Air Force Personnel.

2.12.1. Solely within US territorial jurisdiction. Any Air Force personnel who receive an applicant for asylum in a DoD facility or onboard a military vessel or aircraft will not turn over the applicant against his/her will to foreign authorities until the request is properly considered and directions are received from the Secretary of the Air Force or the Director of the Defense Agency concerned.

2.12.2. Within a foreign territorial jurisdiction. No Air Force personnel may grant an applicant asylum in a DoD component's facilities or onboard any military aircraft or vessel within a foreign country's territorial jurisdiction. The US Embassy is immediately notified upon receipt of this type of request.

2.12.3. Air Force personnel in a foreign country may grant temporary refuge to nationals of that country, to nationals of a third state, or to anyone on the high seas, if a foreign national appears to need protection from imminent danger to life or safety. Refuge is not granted to persons fleeing pursuit by duly constituted law-enforcement authorities of the foreign country. The US Embassy is immediately notified upon receipt of this type of request.

2.12.4. The senior official at the DoD facility or onboard a military aircraft or vessel grants temporary refuge, if appropriate, upon request of the foreign national. That refuge ends only when directed by the Secretary of the Air Force, or higher authority, in coordination with relevant US entities.

2.12.5. Information is not released concerning a request for asylum or temporary refuge to the public or the media without approval by the Assistant Secretary of Defense for Public Affairs.

3. Reportable Incidents . Reportable incidents are reported in accordance with operational reporting requirements. In addition, Air Force personnel are to report reportable incidents through their chain of command to their commander. Personnel may also report reportable incidents through other channels, such as to security forces, AFOSI, judge advocates, or inspectors general.

3.1. In most instances investigations of reportable incidents are the responsibility of the combatant commands. Pursuant to CJCSI 5810.01D, *Implementation of the DOD Law of War Program*, the combatant command will provide the Secretary of the Air Force, or designated representative(s), a copy of the completed report of investigation of reportable incidents committed by or against members of (or persons accompanying or serving with) the Air Force or against their property. In situations where such responsibility cannot be exercised by the combatant command, the Air Force will investigate reportable allegations.

3.2. Commanders shall resolve substantiated violations through appropriate and timely corrective action, including, as appropriate, prosecution under the UCMJ or referral under MEJA.

3.3. Commanders, through their staff judge advocate, will forward a copy of completed investigations to AF/JA through the Directorate of Operations and International Law (AF/JAO).

HEATHER WILSON
Secretary of the Air Force

ATTACHMENT 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Title 1 USC, Section 112b (Case-Zablocki Act)

Title 18 USC Section 2441 (War Crimes)

Title 18 USC, Sections 3261-3267 (Military Extraterritorial Jurisdiction Act of 2000)

Title 22 USC, Sections 701-706 (Service Courts of Friendly Foreign Forces)

DoD Directive 2311.01E, *DoD Law of War Program*, 9 May 2006, incorporating through Change 1, 15 November 2010, certified current as of 22 February 2011

DoD Directive 3000.03E, *DOD Executive Agent for Non-Lethal Weapons (NLW), and NLW Policy*, 25 April 2013, incorporating through Change 1, 27 September 2017

DoD Directive 3000.09, *Autonomy in Weapon Systems*, 21 November 2012, incorporating through Change 1, 8 May 2017

DoD Directive 5000.01, *The Defense Acquisition System*, 12 May 2003, certified current as of 20 November 2007

DODD 5205.07, Special Access Program (SAP) Policy, 1 July 2010

DoD Directive 5525.1, *Status of Forces Policy and Information*, 7 August 1979, incorporating through Change 2, 2 July 1997; certified current as of 21 November 2003

DoD Directive 5530.3, *International Agreements*, 11 June 1987, incorporating through Change 1, 18 February 1991; certified current as of 21 November 2003.

DoD Instruction 2000.11, *Procedures for Handling Requests for Asylum and Temporary Refuge*, 13 May 2010, incorporating through Change 1, 23 May 2017

DoD Instruction 3020.41, *Operational Contract Support (OCS),* 20 December 2011, incorporating Change 1, 11 April 2017

DoD Instruction 5100.64, *DoD Foreign Tax Relief Program*, 8 July 2016

DoD Instruction 5525.03, *Criminal Jurisdiction of Service Courts of Friendly Foreign Forces and Sending States in the United States*, 23 May 2016

CJCSI 5810.01D, *Implementation of the DOD Law of War Program*, 30 April 2010

Air Force Manual 33-363, *Management of Records*, 1 March 2008, incorporating change 2, 9 June 2016, certified current 21 July 2016

Prescribed Forms

None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AF/JA—The Judge Advocate General of the Air Force

AFMAN—Air Force Manual

AFOSI—Air Force Office of Special Investigations

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDI—Department of Defense Instruction

DoD/GC—General Counsel of the Department of Defense

IHL—International Humanitarian Law

LOAC—Law of Armed Conflict

MAJCOM—Major Command

MEJA—Military Extraterritorial Jurisdiction Act

NATO—North Atlantic Treaty Organization

SAF/GC—General Counsel of the Air Force

SAF/IA—Deputy Under Secretary of the Air Force (International Affairs)

UCMJ—Uniform Code of Military Justice

US—United States

USC—United States Code

USAF—United States Air Force

Terms

Cyber Capability—An Air Force cyber capability requiring a legal review prior to development or acquisition is any device, computer program or technique, including any combination of software, firmware or hardware intended to deny, disrupt, degrade, destroy or manipulate adversarial target information, information systems, or networks. Cyber capabilities are intended for use by Air Force organizations under Air Force authorities in a conflict or other military operation. Cyber capabilities are neither weapons nor nonlethal weapons, as defined and stated in DoDD 3000.03E. Cyber capabilities do not include a device, computer program or technique developed or acquired and used internal to Department of Defense networks; used for training; or that are solely intended to provide access to adversarial and targeted computers, information systems or networks.

Reportable Incident—A possible, suspected, or alleged violation of the law of war for which there is credible information, or conduct during military operations other than war that would constitute a violation of the law of war if it occurred during armed conflict. Requires reporting to the responsible Combatant Commander and/or military criminal investigative organization. (Source: DoDD 2311.01E and CJCSI 5810.01D)

Special Access Program—A program established for a specific class of classified information that imposes safeguarding and access requirements that exceed those normally required for information at the same classification level. (Source: DoDD 5205.07, SAP Policy)

War Crime —Generally, those acts considered to be a serious violation of the law of war. (Source: 18 USC 2441 and DoDD 2311.01E)

Weapon—A device designed to kill, injure, disable or temporarily incapacitate people or destroy, damage, disable, or temporarily incapacitate property or materiel. The term "weapon" does not include a device developed and used for training, or launch platforms to include aircraft and intercontinental ballistic missiles.

Weapon System—A combination of one or more weapons with all related equipment, materials, services, personnel, and means of delivery and deployment (if applicable) required for self-sufficiency. (Source: JP 3-0). Weapon systems do not include launch or delivery platforms, such as, but not limited to, ships or aircraft.